them. This is why, as Ajoy Ghosh wrote, a number of their key witnesses were now turning hostile. In the end, the accused threw in the towel. They boycotted the proceedings. They decided they would not participate in the hearings at all. They were not wrong to do so. One is reminded here of Jinnah's 12 September 1929 speech in the Delhi Central Assemby yet again: 'I appeal to you with all the emphasis I can command, do not be vindicative. Show that you are fair, generous, that you are willing to treat these men decently. At any rate, before they are released or sentenced, given them proper treatment.'[3] And yet, proper treatment was one thing that the accused did not have, and the authorities remained vindicative to the end.

The judicial authorities also were not impartial at all. This is clear from an application before Rai Sahib Pandit Sri Kishen, which was made on 4 October 1929. The application asked for the removal of the approvers to judicial custody. Not only did the magistrate reject the application, but he did so in terms which clearly showed his bias. He employed language which was injudicious and unbecoming of a judge. He reprimanded counsel for the accused saying, 'The Learned defence counsel does not hold a brief on behalf of the Approvers to be in a position to plead for them quite uninvited . . . .' That may be so, but learned counsel did hold a brief for the accused whom he was representing, and it was in their defence that he was making an application for the removal of the approvers into judicial custody where they could not be tampered with. The magistrate then added that 'the proper time for him to elicit details of the nature alluded to by him in his application would be when the Approvers would come into the witness box, and the accused shall have a right to cross examine them'. But learned counsel here was not raising an issue relating to cross-examination, but one relating to fairness of procedures and due process, where the approvers, being in police custody, were in a position to be groomed by the authorities by being told what to say in the witness box.

To crown it all, the magistrate admonished counsel for the accused with the reprimand that, '*there's no jurisdiction of the accused to dictate to the court* as *to how and where the Approvers should be kept* and to enquire as to their whereabouts . . .'.[4] This, however, is not right at all. The Defence